



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Athen Mores
Subject: PUDC-24-36 | Lot 1 Cheyenne Ice and Event Center, 2nd Filing – Zoning Map Amendment
Date: April 8, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 04/08/2024
- Public Services Committee 04/16/2024
- Second reading 04/22/2024
- Public Services Committee 05/07/2024
- Third and final reading 05/13/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their April 1, 2024 meeting and recommended the Governing Body approve this application unanimously.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO P PUBLIC DISTRICT FOR LAND LOCATED AT LOT 1, CHEYENNE ICE AND EVENTS CENTER, 2ND FILING LOCATED AT 1530 WEST LINCOLNWAY"

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on April 1, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as Lot 1, Cheyenne Ice & Events Center, 2nd Filing, Cheyenne, Wyoming, is hereby changed to P Public District.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

MARCH 4, 2024

STAFF REPORT

FILE: PUDC-24-36 – Lot 1 Cheyenne Ice and Event Center, 2nd Filing, Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 6.50 acres of land from CB Community Business to P Public District.

LOCATION: 1530 W Lincolnway

AGENT: Jeanie Shrednik

OWNER: City of Cheyenne

ZONING: CB Community Business

FUTURE LAND USE: Mixed Use Commercial

PURPOSE: Rezone property into P Public District zone district

PREPARED BY: Athen Mores, Planner



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1 Cheyenne Ice and Event Center 2nd Filing from CB Community Business to P Public District, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from CB Community Business to P Public District for roughly 6.50 acres of land. The land is currently occupied by the City-owned Cheyenne Ice and Events Center.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed Use Commercial	CB Community Business	Events Center
North	Mixed Use Commercial	LI Light Industrial	Industrial, Manufactured Housing Park
South	Mixed Use Commercial	CB Community Business	Vacant (service uses under construction)
East	Mixed Use Commercial	CB Community Business	Commercial Services, Multifamily Residential
West	Mixed Use Residential	P Public District	Vacant (gymnastics facility under construction)

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The Future Land Use Designation for this property and most surrounding properties is Mixed Use Commercial. Surrounding the area is also the Mixed Use Residential designation. These designations encourage a mix of residential and commercial uses with associated zone districts. According to comprehensive plan the optimal City zone for the subject property's future land use designation is Mixed-use Business, but a variety of commercial or residential zones may be

applicable to meet the intended development pattern. While the future land use map of PlanCheyenne would suggest a commercial or residential zoning for the property, public uses such as parks, schools, and recreation facilities can be appropriate in nearly any future land use designation, serving residents and businesses either nearby or regionally. It is hard to predict where public uses will be needed or where such public-use development is feasible. Although there is a 'public' designation on the future land use map, it is largely only used for existing public (or quasi-public) facilities.

PlanCheyenne encourages the measured growth of public facilities to keep up with the needs and demands of a growing community. Public investment is encouraged along the west Lincolnway corridor to encourage private investment. The creation of public facilities is one form of public investment that can assist in this objective. Quality of life amenities (including recreation-center-like facilities) are encouraged to be competitive with front range facilities.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The requested zone is P Public District. The property is currently zoned CB Community Business. The requested zone of P is specifically intended to allow for public recreational development and to match the public zoning to the west.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The P Public District zone, as put forward in the UDC, is primarily for public sites, buildings and uses where activities conducted provide service to the public, including educational facilities, recreational areas, and community service facilities. These uses all apply to the event center making the zone change to P appropriate.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The zone change is occurring in a pre-existing neighborhood. No changes to the street network are proposed.

Accesses will not be changed with the zone change.

Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The P Public District zone is intended for public sites, buildings, and uses where activities conducted provide service to the public, including educational facilities, recreational areas, and community service facilities. The existing structure meets these objectives.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The existing structure is the only structure that will be located within this zone. There is no future development or additions within this zone.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The P Public District zone is appropriate based on the future land use map, surrounding zoning, and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

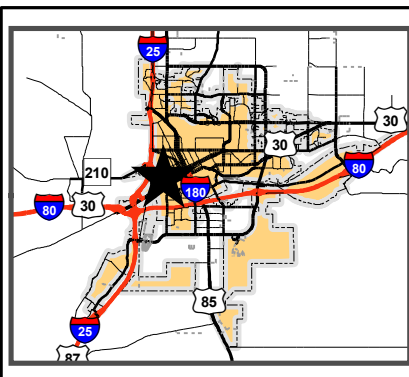
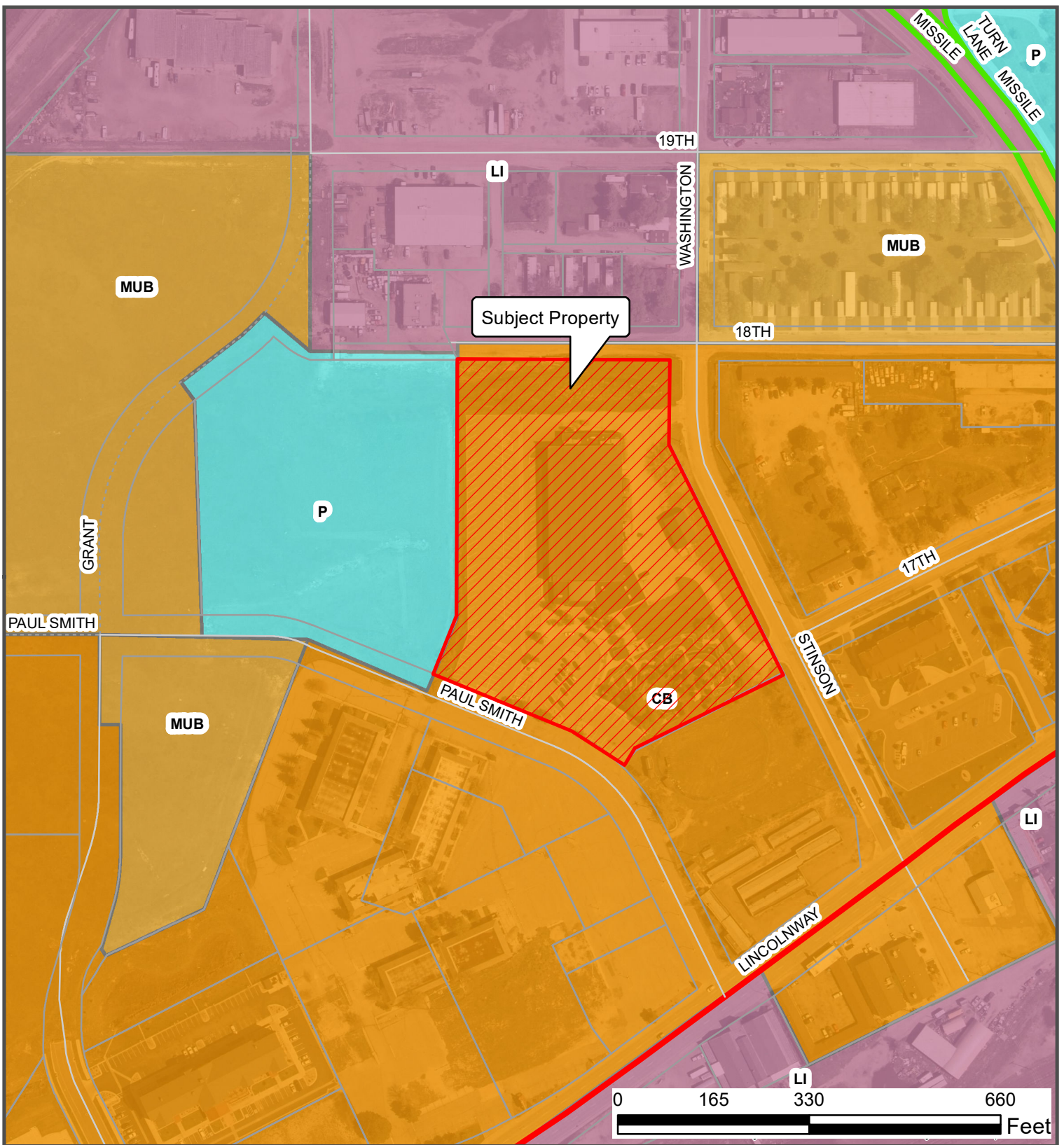
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from CB Community Business to P Public District.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

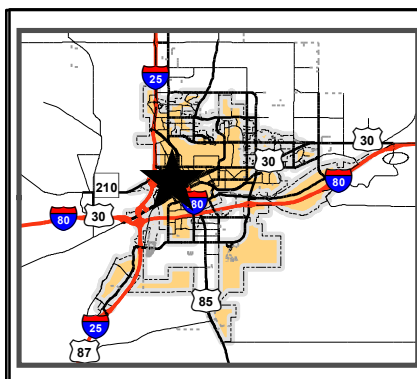
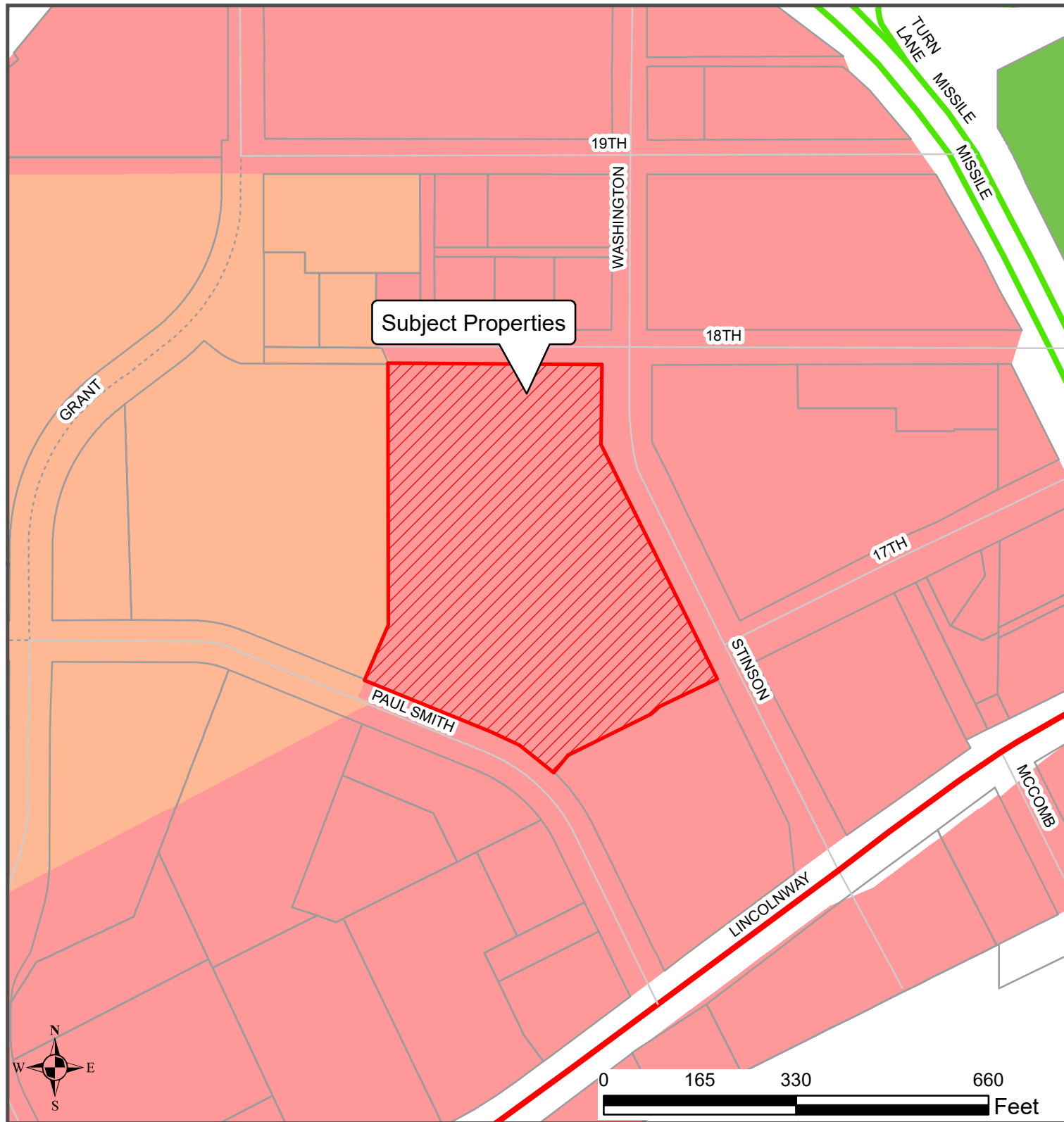


Attachment 1: Zoning Map PUDC-24-36

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-36

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

3/25/2024

PUDC-24-36**Zoning Map Amendment**

Status: Active

Submitted On: 2/21/2024

Primary Location

1530 W LINCOLNWAY

Cheyenne, WY 82001

Owner

CITY OF CHEYENNE

2101 O NEIL AVE RM 101

CHEYENNE, WY 82001

Applicant

Jeanie Shrednik

303-638-4379

jshrednik@cheyennecity.org

 2101 O'Neil Avenue
Room 202
Cheyenne, WY 82001

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name* ?Cheyenne Ice and Events Center Zoning
Map Amendment**Proposed Zoning* ?**

P Public

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Jean A Anderson-Shrednik

Feb 21, 2024

Attachments

	Draft Neighbor Notification Letter Zone Change Letter - Ice and Events Center.pdf Uploaded by Jeanie Shrednik on Feb 21, 2024 at 9:38 AM	REQUIRED
	Neighbor Notification List Zone Change Letter - Ice and Events Center.pdf Uploaded by Jeanie Shrednik on Feb 21, 2024 at 9:38 AM	REQUIRED
	Mailed Notice PUDC-24-36 Mailed Notice.pdf Uploaded by Athen Moers on Mar 19, 2024 at 10:27 AM	
	Letter of Authorization Letter of Authorization.pdf Uploaded by Jeanie Shrednik on Feb 21, 2024 at 9:37 AM	REQUIRED
	Proposed Zoning Map Ice and Events Center Zone Change Map.pdf Uploaded by Jeanie Shrednik on Feb 21, 2024 at 9:38 AM	REQUIRED



SITE INFORMATION - LOT 1, CHEYENNE ICE AND EVENTS CENTER, 2ND FILING

**CURRENT ZONING - CB-COMMUNITY BUSINESS DISTRICT
REQUESTED ZONING - P-PUBLIC DISTRICT**

